

Summary of Biden's AI Executive Order

Overview

Biden issued an extensive executive order about AI on October 30, 2023.

It establishes a Federal government-wide approach by requiring or encouraging Federal agencies to perform various actions, highlighting the following principles:

- AI must be safe and secure
- Promote responsible innovation, competition, and collaboration
- Commit to supporting American workers
- Advance equity and civil rights
- Enforce existing consumer protection laws, such as safeguarded against fraud, unintended bias, discrimination, and infringement on privacy.
- Protect privacy and American liberties
- Take steps to improve AI skills in the Federal government
- Take steps to be a engage with international allies to co-mange AI risks

In addition, the order establishes the White House Artificial Intelligence Council (White House AI Council) to oversee activities.

The following is a summary of key points.

[Read the full text here](#)

Technology-specific Requirements

Generative AI

Definition:

“the class of AI models that emulate the structure and characteristics of input data in order to generate derived synthetic content. This can include images, videos, audio, text, and other digital content.”

Key requirements:

The Secretary of Commerce shall write a report which will be used to create guidance about standards for the following (4.5):

- Identifying provenance, labeling synthetic content, and detecting synthetic content.
- Preventing the generation of child sexual abuse material
- Auditing synthetic content

AI in chemical, biological, radiological, or nuclear (CBRN) weapons

Key requirements:

- The relevant Federal agencies will evaluate the potential for AI enable CBRN threats
- OSTP and others will establish a framework synthetic nucleic acid sequences providers. All agencies that fund life-sciences research shall require adherence with the framework.
- The Chief Data Officer Council shall develop guidelines for security reviews, including risk of releasing data that could aid in the development of CBRN and other weapons. Agencies shall conduct security reviews based on that (4.7)

Dual-use foundation models

Definition:

“AI model that is trained on broad data; generally uses self-supervision; contains at least tens of billions of parameters; is applicable across a wide range of contexts; and that exhibits, or could be easily modified to exhibit, high levels of performance at tasks that pose a serious risk to security, national economic security, national public health or safety, or any combination of those matters”

Key requirements:

- Within 90 days of this order, the Secretary of Commerce shall require companies to report when they develop or use dual-use foundation models and information about those models, such as the results of red-team testing
- The Secretary of Commerce shall write a report about the risks and benefits of publicizing technical details which could make dual-use foundation models more widely available (4.6)

Risk Mitigation

Agencies are required or encouraged to use their authority to promote the following, with an emphasis on addressing AI discrimination

Supporting workers

Federal agencies will write reports about how AI affects the labor market, how agencies can support workers displaced by AI adoption, and how employers could avoid harm to their employees (section 6)

Protecting Civil rights

Including (section 7):

- Strengthening AI and Civil Rights in the Criminal Justice System (7.1)
- Protecting Civil Rights Related to Government Benefits and Programs- especially addressing AI discrimination resulting from AI use in the federal government (7.2)
- Strengthening AI and Civil Rights in the Broader Economy (7.3)

Protecting Consumers, Patients, Passengers, and Students

Topics of focus include AI in transportation, education, and healthcare. They are also encouraged to use their authority to address AI risks (section 8)

Protecting Privacy

Including evaluating standards and procedures regarding the collection, processing, maintenance, use, sharing, dissemination, and disposition of personally identifiable information (section 9)

Harnessing AI's power

Agencies are required to engage in activities that strengthen the US with regards to AI.

Promoting Innovation and Competition

Including (section 5):

- Attracting AI Talent to the United States. - e.g., streamlining visa processes for AI talent
- Promoting Innovation - e.g., the NSF will fund four more national AI research institutes
- Promoting Competition - e.g., the Secretary of Commerce shall support small businesses innovating and commercializing AI

Advancing Federal Government Use of AI

Including (section 10):

- Providing Guidance for AI Management
- Increasing AI Talent in Government

Strengthening American Leadership Abroad

Including efforts to global promote standards and frameworks for the responsible development and deployment of AI (section 11)

For More

- Read the full text [here](#)
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